

Almehtab Industries Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 7 January 2022 · WRIT - C No. 34662 of 2021 · **Interim reconnection on Rs.1 lakh deposit; merits pending**

HEADNOTE

On a writ alleging disconnection without the fifteen-day notice under Clause 4.36 of the U.P. Electricity Supply Code, 2005, after a Clause 7.10 CGRF billing proceeding had been withdrawn for private settlement, the Allahabad High Court held that the petition required consideration because no final bill on the disputed demand had been raised before disconnection and no time had been given to clear the default. It directed reconnection forthwith on deposit of Rs.1 lakh, stayed further recovery of the impugned demand during pendency subject to payment of current dues, and left the distribution corporation free to conclude the actual demand. Merits remain pending.

FACTUAL SUMMARY

Almehtab Industries Pvt. Ltd. was disconnected over a disputed demand covering four days from 28 October to 2 November 2015. The 2015 billing dispute had gone to the CGRF under Clause 7.10 but was withdrawn on 28 February 2019 for a private settlement. The consumer alleged disconnection without statutory or Clause 4.36 fifteen-day notice and without a final bill. The distribution corporation said the consumer never approached it to settle.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.36

disconnection notice and interim reconnection

HOLDING

Without deciding whether Clause 4.36 notice was given or the correctness of the 2015 demand, the Court held that the writ required consideration because no further order or final bill on the disputed demand had been raised before disconnection and no time had been granted to clear the default. Subject to deposit of Rs.1,00,000, it directed that the connection be restored forthwith, barred further recovery of the impugned demand during pendency, required continuous payment of current dues, and left the corporation free to consider and conclude the actual demand. ¶ 1

PRINCIPLE TAGS

interim-reconnection-on-deposit-pending-writ

Catalog 7.10 alternate-remedy tags do not fit: the CGRF case had already been withdrawn and the Court did not relegate the consumer. On a pending writ alleging disconnection without Clause 4.36 notice, the Court granted interlocutory reconnection on a Rs.1 lakh deposit because no final bill or time to clear default was shown, without deciding the notice or the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DISCONNECTION WAS PRECEDED BY STATUTORY NOTICE OR THE FIFTEEN-DAY NOTICE REQUIRED BY CLAUSE 4.36.

Raised by the petitioner; recorded but not decided on merits. ¶ 1

NOT DECIDED — CORRECTNESS OF THE DISPUTED 2015 DEMAND AND THE ACTUAL AMOUNT PAYABLE FOR 28.10.2015 TO 02.11.2015.

Left open to the distribution corporation to consider and conclude the actual demand. ¶ 1

NOT DECIDED — WHETHER EITHER PARTY FAILED TO PURSUE THE CONTEMPLATED PRIVATE SETTLEMENT AFTER WITHDRAWAL OF THE CLAUSE 7.10 CGRF PROCEEDING ON 28.02.2019.

The Court declined to resolve the competing accounts. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.